

A. This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in Federal Acquisition Regulation (FAR) Subpart 12.6, as supplemented with additional information included in this notice, FAR Part 12, Acquisition of Commercial Items (Title VIII of the Federal Acquisition Streamlining Act of 1994) (Public Law 103-355).

This announcement constitutes the only solicitation; quotes are being requested, and a written solicitation will not be issued.

B. The Great Plains Area Indian Health Service (IHS) intends to award a Firm-Fixed Price, Non-Personal Service Type, Commercial Item Purchase in response to Request for Proposal (RFP) 75H70626R00012.

C. This solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2026-01, 03/13/2026.

D. This RFP is issued as "100% Small Business (SB)". The associated NAICS code is 541519 (Information Technology Value Added Resellers), and the small business standard is 150 employees.

E. The quoted unit pricing must be all-inclusive (including, but not limited to, travel, lodging, per diem, fringe benefits, federal, state, and local taxes), plus all other costs pertinent to the performance of this contract. Utilize your most competitive and reasonable rates.

F. Complete the SF 1449 (11/2021):

1. Base Year \$: _____

2. Option Year One \$: _____

3. Option Year Two \$: _____

4. Option Year Three \$: _____

5. Option Year Four \$: _____

Grand Total: \$: _____

G. To provide IT Support Services for the Great Plains Area Office, Office of Information Technology, Aberdeen, South Dakota.

H. To be provided for the Great Plains Area Office, Office of Information Technology, South Dakota 57401. Delivery Location: 115 4th Avenue, SE., Aberdeen, South Dakota 57401; The Period of Performance will be one year from the date of award plus four one-year option periods.

I. FAR 52.212-1 Instructions to Offerors-Commercial Products and Commercial Services (SEP 2023).

Quotes shall be submitted on company letterhead stationery, signed and dated, and they shall include the following:

1. Solicitation number 75H70626R00012.
2. Closing Date: April 28, 2026, at 12:00 pm CDT.
3. Name, address, and telephone number of company and email address of contact person.
4. Provide a technical description of the item/service in sufficient detail to evaluate compliance with the solicitation requirements. This may include product literature or other relevant documents, as needed.
5. Terms of any express warranty.
6. Price and any discount terms.
7. "Remit to" address, if different than mailing address.
8. A completed copy of the representations and certifications from SAM.gov.
9. Acknowledgment of Solicitation Amendments (if any issued)
10. Past performance information, when included as an evaluation factor, includes recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers, and other relevant information).
11. A statement specifying the extent of agreement with all terms, conditions, and provisions of the solicitation. Offerors that fail to furnish required representations or information or reject the terms and conditions of the solicitation may be excluded from consideration.

FAR 52.212-2 Evaluation – Commercial Products and Commercial Services (NOV 2025) (DEVIATION)

BASIS FOR AWARD: This award selection will be conducted using Lowest Price Technically Acceptable (LPTA) procedures. To be eligible for an award, a proposal must meet all technical requirements, comply with all required terms and conditions, and include all required information. All non-price evaluation factors must be rated as "ACCEPTABLE" in order to be eligible for award. An "UNACCEPTABLE" rating in any factor will result in the

proposal being rated "UNACCEPTABLE" unless corrected through discussions. A proposal rating of "UNACCEPTABLE" makes a proposal ineligible for award. Since the LPTA methodology prohibits trade-offs, all evaluation factors and sub-factors are equally important. Proposals are evaluated for acceptability but not ranked based on non-price factors.

A price evaluation will be performed for all offerors, and proposals will be ranked from lowest to highest price based on the Total Proposed Price (TPP) provided by the offeror on the price schedule sheet. Next, each factor will be evaluated and, subsequently, the overall proposal will be prepared, beginning with the lowest-priced proposal. The award will be made to the lowest-priced proposal that meets the acceptability standards for the non-price factors. The Government intends to award a contract without discussion; therefore, the initial proposal shall conform to the solicitation requirements and shall present the best offer from a technical and price perspective.

Technical Factor 1 – Past Performance

(a) Solicitation Submittal Requirements:

Offerors do not need to provide any information under this factor as the US Government will base the evaluation on all INTERIM and FINAL Contractor Performance Assessment Reports (CPARs) that are recent and relevant. The CPARs will be retrieved from official US Government sources, including, but not limited to, the Contractor Performance Assessment Reporting System and the Past Performance Information Retrieval System.

(b) Basis of Evaluation:

Recency:

For the purposes of this solicitation, a past performance record is recent if the CPAR final date of assessment listed in the "Period of Performance Being Assessed" block is within the 24-month period preceding the proposal due date.

Relevancy:

For the purposes of this solicitation, a past performance record is relevant if the CPAR business sector is listed as "Services".

In order to receive an "acceptable" rating for this factor, an Offer's recent and relevant CPARs must NOT include one or more INTERIM and/or FINAL CPARs with a rating of "UNSATISFACTORY" in one or more categories OR one or more INTERIM and/or FINAL CPARs with a rating of "MARGINAL" in two or more categories. If an Offeror has one or more CPARs with a rating of "UNSATISFACTORY" in one or more categories OR one or more

CPARs with a rating of "MARGINAL" in two or more categories, the Offeror's past performance will be evaluated as "UNACCEPTABLE".

In the case of an Offeror without a record of recent and relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror may not be evaluated favorably or unfavorably on past performance. Therefore, the Offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability, "unknown" shall be considered "acceptable." An "UNACCEPTABLE" rating for a single factor will result in the Offeror's entire proposal being rated "UNACCEPTABLE".

Technical Factor 2 – Problem and Approach

(a) Solicitation Submittal Requirements:

Proposals, which merely offer a statement to conduct/provide services in accordance with the requirements in the Governments SOW, will not be eligible for award. The offeror must submit an explanation that meets the requirements identified under Performance-Based Service Delivery Summary, Completion of patient record, Prompt and continuous coverage and Credentialing.

(b) Basis of Evaluation:

This factor will be evaluated as "ACCEPTABLE" if the explanation meets the requirements identified under Performance-Based Service Delivery Summary; Completion of documentation of patient record, Prompt and continuous coverage and Credentialing, which comply with the requirements outlined above, are submitted. If an explanation of one or more Performance Task/Requirement is not provided, and/or does not comply with the requirements, this factor will receive an "UNACCEPTABLE" rating.

Technical Factor 3 – Management

(a) Solicitation Submittal Requirements:

Proposals, which merely offer a statement to conduct/provide services in accordance with the requirements in the Governments SOW, will not be eligible for award. The offeror must submit an explanation that identifies the offeror's management capabilities and responsibilities to meet the following: Tour of Duty/Schedule, Description of Services, Contractor Responsibility and Personnel Requirements.

(b) Basis of Evaluation:

This factor will be evaluated as "ACCEPTABLE" if the explanation meets the requirement for management capabilities and responsibilities to meet the following: Tour of

Duty/Schedule, Description of Services, Contractor Responsibility and Personnel Requirements, which comply with the requirements outlined above, are submitted. If an explanation of one or more of the following: Tour of Duty/Schedule, Description of Services, Contractor Responsibility and Personnel Requirements and/or does not comply with the requirements, this factor will receive an “UNACCEPTABLE” rating.

IHS reserves the right to make multiple awards, which is most advantages to the Government. This is a competitive solicitation and the offer your firm submits will be used by IHS to determine, which of the quantities listed within are, “estimate only” and it is not the intent of IHS to be obligated to order the “quantities.”

Factor 4 – Price

(a) Solicitation Submittal Requirements:

Completed Price Schedule Sheet

(b) Basis of Evaluation:

The Government will evaluate price based on the proposed total price calculated as the sum of bid item 0001 Base Year, item 0002 Option Year 1, item 0003 Option Year 2, item 0004 Option Year 3 and item 0005 Option Year 3 that includes Contract cost, Subcontractor cost, Overhead and Profit. Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

- (i) Comparison of proposed prices received in response to the RFP.
- (ii) Comparison of proposed prices with the IGE.
- (iii) Comparison of proposed prices with available historical information.

Note: A price that is found to be either unreasonably high or unrealistically low in relation to the proposed work may be indicative of an inherent lack of understanding of the solicitation requirements and may result in the overall proposal being considered unacceptable.

INTENT TO AWARD WITHOUT DISCUSSIONS

The Government intends to evaluate proposals and award a contract without discussions with Offerors. Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In the event discussions are held, a competitive range determination will be made. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be

conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. However, The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary.

J. FAR 52.212-4 Contract Terms and Conditions-Commercial Products and Commercial Services (NOV 2023) - See attachment; Clauses Incorporated by Reference.

K. The Federal Acquisition Regulations (FAR) and Health & Human Services Acquisition Regulation (HHSAR) applicable clauses, including those below, are attached.

L. Offers will be accepted electronically; submit via email to the following: Great Plains Area Indian Health Service, Attn: David Jones, Contract Specialist, 115 4th Ave. SE, Aberdeen, SD 57401, Email: david.jones@ihs.gov.

Questions regarding this solicitation must be submitted in writing by email no later than April 13, 2026, 12:00 p.m. CDT.

Contractors will need a UEI number & TIN and must register with the System for Award Management at www.sam.gov.

Acceptance Period: Your proposal must be predicated upon all the terms and conditions of this RFP and be firm until September 30, 2026.

The quotation must set forth full, accurate, and complete information as required by the Request for Proposal (RFP) and be returned by the date referenced. All the necessary information must be submitted to be considered responsive and eligible for award.

No contract award shall be made to any vendor listed on the OIG Exclusions List at <http://exclusions.org.hhs.gov> throughout the contract.

Invoice Processing Platform (IPP)

The Indian Health Service (IHS) has implemented an electronic invoicing system. In compliance with the Office of Management and Budget (OMB) M-15-19 memorandum "Improving Government Efficiency and Saving Taxpayer Dollars Through Electronic Invoicing," directing Federal agencies to adopt electronic invoicing as the primary means to disburse payments to vendors. Invoices submitted under any award resulting from this solicitation will be required to utilize the Invoice Processing Platform (IPP) in accordance with HHSAR 352.232-71, Electronic Submission and Processing of Payment Requests."

IPP is a secure, web-based electronic invoicing system provided by the U.S. Department of the Treasury's Bureau of the Fiscal Service in partnership with the Federal Reserve Bank of St. Louis (FRSTL). Respondents to this solicitation are encouraged to register an account

with IPP if they have not already done so. If your organization is already registered to use IPP, you will not be required to re-register. However, we encourage you to ensure that your organization's designated IPP user accounts are valid and up to date. The IPP website address is: <https://www.ipp.gov>.

If you require assistance registering or IPP account access, please get in touch with the IPP Helpdesk at (866) 973-3131 (M-F 8 AM to 6 PM ET), or IPPCustomerSupport@fiscal.treasury.gov.

"Should the contractor feel that use of the IPP would be unduly burdensome, their response to this solicitation should include an explanation of this position for a determination by the contracting officer".

The Contractor must provide only new equipment and new parts for the required products described herein; no used, refurbished, or remanufactured equipment or parts shall be provided under any circumstances. No Gray Market Goods or Counterfeit Electronic Parts shall be provided. Gray Market Goods are defined as genuine branded goods intentionally or unintentionally sold outside of an authorized sales territory or by non-authorized dealers in an authorized territory. All equipment shall be accompanied by the original equipment manufacturers (OEMs) warranty. Counterfeit Electronic Parts are defined as unlawful or unauthorized reproduction, substitution, or alteration that has been knowingly mismarked, misidentified, or otherwise misrepresented to be an authentic, unmodified electronic part from the original manufacturer or a source with the express written authority of the original manufacturer or current design activity, including an authorized aftermarket manufacturer. Unlawful or unauthorized substitution includes used electronic parts represented as new or the false identification of grade, serial number, lot number, date code, or performance characteristics.

The Office of Management and Budget (OMB) mandates that U.S. federal agencies use the Internet Protocol version 6 (IPv6). In November 2020, OMB issued memorandum M-21-07, "Completing the Transition to IPv6", which outlines the Federal government's strategic intent "to deliver its information services, operate its networks, and access the services of others using only IPv6". The IHS requires all new IT systems (hardware and software) to operate in a pure IPv6 network environment. This includes on-premises or third-party hosted services requiring network integration into the IHS network. The Offeror's solution shall comply with the IPv6 standards profile defined by the NIST USGv6 Program: <https://www.nist.gov/programs-projects/usgv6-program>.

Introduction

The mission of the Indian Health Service (IHS) is to raise the physical, mental, social, and spiritual health of American Indians and Alaska Natives to the highest level. As part of this mission, the IHS is committed to providing a reliable and efficient health information system, modernizing IT infrastructure, improving access to care, and reducing medical errors through technology.

Statement of Work (SOW)

Enterprise Cisco UC/Collaboration & RPMS Systems Support

The Indian Health Service (IHS) Great Plains Area (GPA) seeks a single contractor to provide comprehensive support services that encompass the full scope of work contained in both the Enterprise Cisco Unified Communications (UC) and Collaboration Support requirements and the Resource Patient Management System (RPMS) Systems Support requirements. The selected contractor will deliver unified communications engineering, system administration, maintenance, troubleshooting, modernization, and Tier 2/Tier 3 support for both the Cisco collaboration ecosystem and RPMS/EHR platform environments across all GPA facilities. These services will be consolidated under one contract to ensure coordinated oversight, streamlined support, and high system reliability for mission-critical communication and clinical information systems.

Section C — Statement of Work

C-1. Overview

The Great Plains Area requires comprehensive, integrated IT support services across two major operational domains:

- Enterprise Cisco UC and Collaboration Systems supporting voice, video, telehealth, conferencing, and communication.
- Engineering Services to migrate Billings into the GPA Calling Cluster
- RPMS/EHR Systems supporting clinical operations at nineteen facilities, including four 24/7 hospitals.

The contractor shall ensure the stability, performance, compliance, and modernization of both environments.

C-2. Place of Performance

Support will be provided primarily remotely using IHS-approved secure connectivity. On-site work will occur only when authorized in writing by the COR. All RPMS and Cisco UC support may involve phone or VPN access. All travel must be pre-approved and reimbursed under relevant policies.

C-3. Period of Performance

Base Period: One (1) year

Option Periods: Four (4) one-year option periods

C-4. Background

The GPA Cisco environment includes UCM, Unity, Expressway, IM&P, Webex, and related systems. RPMS systems run on Windows or AIX and support 19 locations including four hospitals. Both environments support mission-critical healthcare and administrative operations.

C-5. Objectives

Cisco UC Objectives:

- Ensure stable and optimized Cisco UC operations.
- Provide Tier 3 engineering support. i.e. Networking issue resolution, infrastructure equipment support, ISP escalations, last mile carrier / local Telco POC, cloud configurations, SME for related projects.

RPMS Objectives:

- Maintain continuous RPMS/EHR operations.
- Provide Tier 2 support and coordinate Tier 3 escalations. i.e. Restart RPMS services and interfaces for RPMS servers, disaster recovery and restore functions, beta testing and installing patches and RPMS updates, Server maintenance; physical and virtual.

C-6.1 Scope of Work – Cisco UC Support

Tier 3 Engineering and Escalation Support

- Serve as the senior technical resource for Cisco UCM, Webex, and associated collaboration technologies.
- Troubleshoot and resolve complex call flow, SIP trunking, voice gateway, Expressway-C/E traversal, and media resource issues.
- Manage cluster-level operations and interoperability between on-premises and cloud-based platforms.
- Interface with Cisco TAC for major incidents, software defects, and root cause analysis.

System Optimization and Performance Management

- Monitor system performance, call quality, and resource utilization.
- Perform scheduled backups of Cisco Unified Communications applications, Expressway-C/E clusters, and related collaboration components, and validate restore integrity per IHS configuration and continuity requirements
- Conduct QoS audits and implement configuration adjustments to enhance service reliability.

- Optimize integration between Cisco UCM and Webex for seamless collaboration and conferencing.
- Provide quarterly reports summarizing performance trends and improvement recommendations.

Configuration and Lifecycle Management

- Plan and execute upgrades, patches, and system refreshes for UCM clusters, Unity, and Expressway.
- Maintain standard configuration baselines and ensure consistent call routing and dial plan policies.
- Support onboarding of new sites, users, and call flows within the enterprise environment.
- Document configurations, workflows, and system dependencies in accordance with IHS change management.

Security and Compliance

- Ensure systems adhere to IHS and HHS security baselines and hardening standards.
- Coordinate vulnerability mitigation and patch management activities.
- Support required compliance standards through documentation and evidence gathering.
- Collaborate with IHS cybersecurity and ISSO teams for remediation and audit support.

Reporting and Knowledge Transfer

- Deliver monthly reports detailing incidents, system performance, and optimization activities.
- Provide updated documentation following significant changes or upgrades.
- Participate in technical reviews and meetings with IHS leadership as requested.

C-6.2 IHS Billings Migration to GPA UC Cluster:

Migrate up to 1600 phones and 6 sites from two (2) separate Communications and Unity Connection clusters into the existing IHS Great Plains Area (GPA) Communications Manager and Unity Connection clusters

- Configure up to six (6) new sites in the GPA cluster
- Configure up to six (6) gateway routers with SRST in the GPA cluster
- Migrate existing PSTN and analog gateway routers to register with the GPA CUCM cluster
- Activate PRI for Little Shell site with new DIDs for users/phones
- Modify existing dial plan to fit into GPA's 10-digit dial plan
- Configure up to ten (10) paging groups into GPA's existing InformaCast Advanced (ICVA) cluster with up to ten (10) legacy paging interfaces (LPI/analog overhead speakers)

- Duplicate/Import all Auto-Attendant features into new Unity Connection cluster
- Configure up to ten (10) E911 locations into GPA's existing CER based on IP subnet – Required for E911 support
- E911 locations based on dedicated DID availability
- Migrate sites/users in seven (7) separate migration events
- Perform testing, troubleshooting and support post site migration

Assumptions:

- All devices (phones and gateways) will be migrated in a like-for-like manner. It is assumed that all devices are currently Cisco supported.
- Current paging gateways are of a hardware version that will support a firmware upgrade to version 2.X
- Utilize existing IHS/GPA UC and ICVA licensing

C-6.3 Scope of Work – RPMS Systems Support

The Subcontractor is responsible for ensuring that the Resource and Patient Management System/Electronic Health Record (RPMS/EHR) operates reliably across the Great Plains Area (GPA). To meet Indian Health Service (IHS) standards, the Subcontractor must maintain 99% system uptime and ensure all RPMS systems follow standard configuration guidelines across both IRIS and Windows environments. This includes providing continuous monitoring, timely maintenance, technical expertise, and coordination with federal staff.

The Great Plains Area's Office of Information Technology (GPA OIT) requires both Tier 2 and assistance with Tier 3 engineering-level support. Approximately 400–600 tickets per year are handled through Tier 2 services, making the subcontracted support a critical operational function.

Support is provided to nineteen facilities (four of which are 24/7 hospitals) and is conducted remotely via phone or VPN.

Core Technical Responsibilities

1. RPMS Platform & Operating System Support

The Subcontractor must provide full support for:

- Server hardware and OS environments: This includes IBM AIX servers and Windows-based systems.
- RPMS patching and updates: Ensuring systems remain synchronized with IHS National Release cycles.
- IRIS database environments: Installation, upgrades, configuration, and ongoing maintenance of IRIS databases, journaling, and mirroring.

- Backup management: Ensuring consistent and reliable site backups.
- General RPMS issue resolution: Troubleshooting system failures, data issues, and performance concerns.
- OS and application patching: Applying updates to operating systems, RPMS applications, IRIS, and any related RPMS/EHR tools.

2. System Monitoring & Reliability Assurance

To maintain the required 99% uptime, the Subcontractor must:

- Perform proactive monitoring of all systems to detect potential issues early.
- Notify GPA OIT about emerging issues before they become operational problems.
- Ensure system performance remains optimal through tuning, testing, and analysis.
- Provide technical guidance to improve reliability, stability, and security.

Tier 2 Support Responsibilities (Detailed)

Tier 2 support includes direct issue resolution, troubleshooting, and technical intervention across all 19 facilities.

Key responsibilities include:

- **Patch Management & Break-Fix**
Applying patches and resolving failures affecting Windows and AIX systems, including real-time operational disruptions.
- **Help Desk Support**
Offering help desk services for federal, tribal, and urban RPMS systems.
- **Transmission and Connectivity Issue Resolution**
Fixing failures in system communication between AIX and Windows environments.
- **Coordination with On-Site Admins**
Scheduling maintenance with local system administrators to minimize operational impact.
- **Documentation Requirements**
All steps taken to resolve issues must be documented in the centralized repository within 2 hours of ticket closure.
- **Rapid Downtime Response**
Subcontractor personnel must respond “as soon as possible” for any downtime events and must be reachable 24/7 for emergencies.

Specialized Technical Responsibilities:

- Providing qualified specialists for IBM AIX High Availability administration.
- Supplying experienced personnel skilled in IRIS/Caché environments for Windows and AIX.
- Assisting with RPMS server conversions from AIX to Windows.

- Providing remote user support, including RPMS password resets and server troubleshooting.
 - Troubleshooting:
 - Vista Capture and Display client issues
 - ACHS Web Printing Module setup
 - RPMS-Dentrix dental integration
 - IRIS Management Portal errors
 - Great Plains Area DI server issues
 - BMW application problems
 - RPMS Error Trap investigation and resolution
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Tier 3 Support Responsibilities

Though Tier 3 engineering support is provided by IHS headquarters, the Subcontractor must:

- Identify issues requiring Tier 3 assistance, track them, and coordinate the escalation process.
 - Provide monthly status reports documenting:
 - All support calls handled
 - Risks identified and their mitigation
 - Final resolutions
 - Recommend improvements to enhance RPMS reliability based on proactive monitoring.
 - Maintain full tracking of escalated tickets through their final resolution.
 - Prepare and organize training materials, presentations, and documentation (PowerPoints, meeting notes, reports).
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Staffing Requirements

- Provide the equivalent of one full-time employee, which may be composed of multiple specialists (AIX expert, IRIS specialist, Windows engineer, etc.).
- A single dedicated Project Manager/Point of Contact must oversee all activities, ensure communication, and enforce best practices.
- Staff must be able to provide:
 - Business-hours support for standard maintenance windows
 - After-hours emergency support without additional overtime costs
 - Adjusted work schedules to meet facility needs

C-7. Personnel Qualifications

- Cisco UC Engineer: Senior-level Tier 3 engineer with expertise in UCM, Unity, Expressway, Webex, SIP, and QoS.
- RPMS/IRIS Team: 4–5 personnel experienced in AIX, IRIS, and RPMS administration, coordinated by a Project Manager.
- All staff must hold required IHS credentials.

C-8. Government-Furnished Resources

IHS will provide system access, administrative permissions, documentation, network diagrams, and maintenance coordination.

C-9. Security, Privacy & Access Requirements

All personnel must pass background checks and comply with IHS/HHS security requirements. All work must safeguard PII and PHI and follow site-specific security processes.

C-10. Accessibility Requirements

All services procured under this contract must conform to 36 CFR Part 1194 accessibility standards unless exempt.

C-11. Deliverables

- Monthly performance and activity reports.
- Quarterly optimization reports.
- Preventive maintenance schedule.
- Updated documentation after major changes.
- Quality control plan.

1.	Authority
1.1	No person other than the Contracting Officer has authority to bind the Government with respect to this contract;
1.2	No action or omission of any government employee or representative other than the Contracting Officer shall increase or decrease the scope of this contract or shall otherwise modify the terms and conditions of this contract;
1.3	In no event shall any of the following be effective or binding on the Government or imputed to the Contracting Officer with respect to this contract;
1.3.1	An understanding or agreement between the Contractor and anyone other than the Contracting Officer;
1.3.2	A purported modification or change order issued by anyone other than the Contracting Officer;
1.3.3	A promise by anyone other than the Contracting Officer to provide additional funding or make payments or;
1.3.4	An order, direction, consent, or permission from anyone other than the Contracting Officer to;
1.3.4.1	Incur costs in excess of a specified estimated cost, allotment of funds, or other ceiling or;
1.3.4.2	Expend hours in excess of a specified level of effort.

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER		PAGE OF 1 5	
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 75H70626R00012		6. SOLICITATION ISSUE DATE 04/09/2026
7. FOR SOLICITATION INFORMATION CALL:		a. NAME DAVID JONES1			b. TELEPHONE NUMBER (No collect calls)		8. OFFER DUE DATE/LOCAL TIME 04/17/2026 1200 CT
9. ISSUED BY Aberdeen Area Indian Health Servic Federal Building 115 Fourth Ave, SE Aberdeen SD 57401				10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A)			
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE				12. DISCOUNT TERMS			
13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐				13b. RATING			
14. METHOD OF SOLICITATION ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ REQUEST FOR PROPOSAL (RFP)				15. DELIVER TO CODE			
16. ADMINISTERED BY CODE				17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			
18a. PAYMENT WILL BE MADE BY CODE				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.				20. SCHEDULE OF SUPPLIES/SERVICES			
21. QUANTITY				22. UNIT			
23. UNIT PRICE				24. AMOUNT			
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (For Government Use Only)			
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.							
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.							
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED	
				NICHOLE R. LEREW			

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
1	most competitive and reasonable rates. Attachments: Combined Synopsis, Statement of Work (SOW), SF 1449, Provisions & Clauses Incorporated by Reference, Wage Determination(s). FTE_Base: Senior Collab Engineer for 1 Year. Delivery: 04/30/2027 Period of Performance: 05/01/2026 to 04/30/2027				
2	Respec_Base: Respec FTE services to deliver RPMS/IRIS platform, OS, patching, backups, accounts, journaling, mirroring, updates, proactive monitoring, issue resolution, and best-practice support for AIX and Windows. Delivery: 04/30/2027 Period of Performance: 05/01/2026 to 04/30/2027				
3	PMO_Base: Project Management. Delivery: 04/30/2027 Period of Performance: 05/01/2026 to 04/30/2027				
4	BIL_MIG: Billings Area On Prem Migration to GPA. Delivery: 04/30/2027 Period of Performance: 05/01/2026 to 04/30/2027 Continued ...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL				
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT			42a. RECEIVED BY (Print)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER			41c. DATE	
			42b. RECEIVED AT (Location)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

CONTINUATION SHEET

REFERENCE NO. OF DOCUMENT BEING CONTINUED
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
5	Other Fee(s)_Base: (If Applicable) Delivery: 04/30/2027 Period of Performance: 05/01/2026 to 04/30/2027				
6	FTE_OY1: Senior Collab Engineer for 1 Year. (Option Line Item) 05/01/2027 Delivery: 04/30/2028 Period of Performance: 05/01/2027 to 04/30/2028				
7	Respec_OY1: Respec FTE services to deliver RPMS/IRIS platform, OS, patching, backups, accounts, journaling, mirroring, updates, proactive monitoring, issue resolution, and best-practice support for AIX and Windows. (Option Line Item) 05/01/2027 Delivery: 04/30/2028 Period of Performance: 05/01/2027 to 04/30/2028				
8	PMO_OY1: Project Management. (Option Line Item) 05/01/2027 Delivery: 04/30/2028 Period of Performance: 05/01/2027 to 04/30/2028				
9	Other Fee(s)_OY1: (If Applicable) (Option Line Item) 05/01/2027 Delivery: 04/30/2028 Period of Performance: 05/01/2027 to 04/30/2028				
10	FTE_OY2: Senior Collab Engineer for 1 Year. (Option Line Item) 05/01/2028 Delivery: 04/30/2029 Period of Performance: 05/01/2028 to 04/30/2029				
11	Respec_OY2: Respec FTE services to deliver RPMS/IRIS platform, OS, patching, backups, Continued ...				

CONTINUATION SHEET

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
12	accounts, journaling, mirroring, updates, proactive monitoring, issue resolution, and best-practice support for AIX and Windows. (Option Line Item) 05/01/2028 Delivery: 04/30/2029 Period of Performance: 05/01/2028 to 04/30/2029 PMO_OY2: Project Management. (Option Line Item) 05/01/2028 Delivery: 04/30/2029 Period of Performance: 05/01/2028 to 04/30/2029				
13	Other Fee(s)_OY2: (If Applicable) (Option Line Item) 05/01/2028 Delivery: 04/30/2029 Period of Performance: 05/01/2028 to 04/30/2029				
14	FTE_OY3: Senior Collab Engineer for 1 Year. (Option Line Item) 05/01/2029 Delivery: 04/30/2030 Period of Performance: 05/01/2029 to 04/30/2030				
15	Respec_OY3: Respec FTE services to deliver RPMS/IRIS platform, OS, patching, backups, accounts, journaling, mirroring, updates, proactive monitoring, issue resolution, and best-practice support for AIX and Windows. (Option Line Item) 05/01/2029 Delivery: 04/30/2030 Period of Performance: 05/01/2029 to 04/30/2030				
16	PMO_OY3: Project Management. (Option Line Item) 05/01/2029 Delivery: 04/30/2030 Period of Performance: 05/01/2029 to 04/30/2030 Continued ...				

CONTINUATION SHEET

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
17	Other Fee(s)_OY3: (If Applicable) (Option Line Item) 05/01/2029 Delivery: 04/30/2030 Period of Performance: 05/01/2029 to 04/30/2030				
18	FTE_OY4: Senior Collab Engineer for 1 Year. (Option Line Item) 05/01/2030 Delivery: 04/30/2031 Period of Performance: 05/01/2030 to 04/30/2031				
19	Respec_OY4: Respec FTE services to deliver RPMS/IRIS platform, OS, patching, backups, accounts, journaling, mirroring, updates, proactive monitoring, issue resolution, and best-practice support for AIX and Windows. (Option Line Item) 05/01/2030 Delivery: 04/30/2031 Period of Performance: 05/01/2030 to 04/30/2031				
20	PMO_OY4: Project Management. (Option Line Item) 05/01/2030 Delivery: 04/30/2031 Period of Performance: 05/01/2030 to 04/30/2031				
21	Other Fee(s)_OY4: (If Applicable) (Option Line Item) 05/01/2030 Delivery: 04/30/2031 Period of Performance: 05/01/2030 to 04/30/2031				

PROVISIONS AND CLAUSES INCORPORATED BY REFERENCE

52.252-1 Solicitation Provisions Incorporated by Reference.

As prescribed in [52.107\(a\)](#), insert the following provision:

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/browse/index/far>

(End of provision)

52.252-2 Clauses Incorporated by Reference.

As prescribed in [52.107\(b\)](#), insert the following clause:

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <https://www.acquisition.gov/browse/index/far>

(End of clause)

I. Federal Acquisition Regulations (FAR)(48 CFR Chapter 1) Provisions and Clauses Incorporated by Reference.

FAR CITATION	PROVISION/CLAUSE TITLE	PROVISION / CLAUSE DATE
52.202-1	Definitions.	Jun-20
52.203-3	Gratuities.	Apr-84
52.203-7	Anti-Kickback Procedures.	Jun-20
52.204-7	System for Award Management	Nov-24
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan-11
52.204-13	System for Award Management Maintenance.	Oct-18
52.204-14	Service Contract Reporting Requirements.	Oct-16
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec-14
52.209-5	Certification Regarding Responsibility Matters.	Aug-20

52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov-15
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.	Feb-16
52.212-1	Instructions to Offerors - Commercial Products and Commercial Services.	Sep-23
52.212-4	Contract Terms and Conditions - Commercial Products and Commercial Services.	Nov-23
52.216-24	Limitation of Government Liability.	Apr-84
52.217-5	Evaluation of Options.	Jul-90
52.217-8	Option to Extend Services.	Nov-99
52.224-1	Privacy Act Notification	Apr-84
52.224-2	Privacy Act	Apr-84
52.232-1	Payments.	Apr-84
52.232-39	Unenforceability of Unauthorized Obligations.	Jun-13
52.237-1	Site Visit	Apr-84
52.237-3	Continuity of Services.	Jan-91
52.242-15	Stop-Work Order.	Aug-89
52.243-4	Changes (Deviation).	RFO Jun-25
52.243-7	Notification of Change (Deviation).	RFO Jun-25
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Jan-25
52.246-4	Inspection of Services-Fixed-Price.	Aug-96
52.246-20	Warranty of Services.	May-01
52.246-25	Limitation of Liability-Services	Feb-97
52.247-34	F.o.b. Destination.	Jan-91
52.249-9	Default (Fixed-Price Supply and Services)	Apr-84
52.252-6	Authorization Deviations in Clauses	Nov-20
52.253-1	Computer Generated Forms.	Jan-91

PROVISIONS AND CLAUSES IN FULL TEXT

II. Federal Acquisition Regulations (FAR) (48 CFR Chapter 1) Provisions and Clauses in Full Text

FAR CITATION	PROVISION/CLAUSE TITLE	PROVISION / CLAUSE DATE
52.217-9	Option to Extend the Term of the Contract	Mar-00
52.232-19	Availability of Funds for the Next Fiscal Year.	Apr-84

52.217-9 Option to Extend the Term of the Contract.

As prescribed in 17.203(g), insert a clause substantially the same as the following:

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within *30 days*; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least *60 days* before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed *60 months*.

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year.

As prescribed in [32.706-1\(b\)](#), insert the following clause:

Availability of Funds for the Next Fiscal Year (Apr 1984)

Funds are not presently available for performance under this contract beyond September 30, 2025. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30, 2025, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

III. Department of HHS Acquisition Regulations (HHSAR) (48 Chapter 3) Clauses

HHSAR CITATION	CLAUSE TITLE	CLAUSE DATE
HHSAR 352.224-70	Privacy Act	December 2015
HHSAR 352.226-1	Indian Preference	December 2015
HHSAR 352.226-2	Indian Preference Program	December 2015
HHSAR 352.237-70	Pro-Children Act	December 2015

HHSAR 352.237-71	Crime Control Act-Reporting of Child Abuse	December 2015
HHSAR 352.237-72	Crime Control Act-Requirement for Background Checks	December 2015
HHSAR 352.237-73	Indian Child Protection and Family Violence Act	December 2015
HHSAR 352.237-74	Non-Discrimination in Service Delivery	December 2015
HHSAR 352.232-71	Electronic Submission of Invoice Payment Requests	February 2022

352.224-70 Privacy Act.

As prescribed in HHSAR 324.105(a), the Contracting Officer shall insert the following clause:

Privacy Act (DEC 2015)

This contract requires the Contractor to perform one or more of the following: (a) Design; (b) develop; or (c) operate a Federal agency system of records to accomplish an agency function in accordance with the Privacy Act of 1974 (Act) (5 U.S.C. 552a(m)(1)) and applicable agency regulations.

The term *system of records* means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual. Violations of the Act by the Contractor and/or its employees may result in the imposition of criminal penalties (5 U.S.C. 552a(i)).

The Contractor shall ensure that each of its employees knows the prescribed rules of conduct in 45 CFR part 5b and that each employee is aware that he/she is subject to criminal penalties for violation of the Act to the same extent as Department of Health and Human Services employees. These provisions also apply to all subcontracts the Contractor awards under this contract which require the design, development or operation of the designated system(s) of records (5 U.S.C. 552a(m)(1)). The contract work statement:

(a) Identifies the system(s) of records and the design, development, or operation work the Contractor is to perform; and

(b) Specifies the disposition to be made of such records upon completion of contract performance.

(End of clause)

352.226-1 Indian Preference.

As prescribed in HHSAR 326.505(a), the Contracting Officer shall insert the following clause:

Indian Preference (DEC 2015)

(a) The Contractor agrees to give preference in employment opportunities under this contract to Indians who can perform required work, regardless of age (subject to existing laws and regulations), sex, religion, or tribal affiliation. To the extent feasible and consistent with the efficient performance of this contract, the Contractor further agrees to give preference in employment and training opportunities under this contract to Indians who are not fully qualified to perform regardless of age (subject to existing laws and regulations), sex, religion, or tribal affiliation. The Contractor also agrees to give preference to Indian organizations and Indian-owned economic enterprises in the awarding of any subcontracts to the extent feasible and consistent with the efficient performance of this contract. The Contractor shall maintain the necessary statistical records to demonstrate compliance with this paragraph.

(b) In connection with the Indian employment preference requirements of this clause, the Contractor shall provide reasonable opportunities for training, incident to such employment. Such training shall include on-the-job, classroom, or apprenticeship training designed to increase the vocational effectiveness of an Indian employee.

(c) If the Contractor is unable to fill its employment and training opportunities after giving full consideration to Indians as required by this clause, the Contractor may satisfy those needs by selecting non-Indian persons in accordance with the clause of this contract entitled "Equal Opportunity."

(d) If no Indian organizations or Indian-owned economic enterprises are available under reasonable terms and conditions, including price, for awarding of subcontracts in connection with the work performed under this contract, the Contractor agrees to comply with the provisions of this contract involving utilization of small businesses; HUBZone small businesses; service-disabled, veteran-owned small businesses; 8(a) small businesses; veteran-owned small businesses; women-owned small businesses; or small disadvantaged businesses.

(e) As used in this clause,

(1) *Indian* means a person who is a member of an Indian tribe. If the Contractor has reason to doubt that a person seeking employment preference is an Indian, the Contractor shall grant the preference but shall require the individual provide evidence within 30 days from the tribe concerned that the person is a member of the tribe.

(2) *Indian tribe* means an Indian tribe, pueblo, band, nation, or other organized group or community, including Alaska Native village or regional or village corporation as defined in or established pursuant to the Alaska Native Claims Settlement Act (85 Stat. 688; 43 U.S.C. 1601)

which the United States recognizes as eligible for the special programs and services provided to Indians because of its status as Indians.

(3) *Indian organization* means the governing body of any Indian Tribe or entity established or recognized by such governing body in accordance with the Indian Financing Act of 1974 (88 Stat. 77; 25 U.S.C. 1451).

(4) *Indian-owned economic enterprise* means any Indian-owned commercial, industrial, or business activity established or organized for the purpose of profit, provided that such Indian ownership shall constitute not less than 51 percent of the enterprise, and that ownership shall encompass active operation and control of the enterprise.

(f) The Contractor agrees to include the provisions of this clause, including this paragraph (f) of this clause, in each subcontract awarded at any tier under this contract.

(g) In the event of noncompliance with this clause, the Contracting Officer may terminate the contract in whole or in part or may pursue any other remedies authorized by law or by other provisions of the contract.

(End of clause)

352.226-2 Indian Preference Program.

As prescribed in HHSAR 326.505(b), the Contracting Officer shall insert the following clause:

Indian Preference Program (DEC 2015)

(a) In addition to the requirements of the clause of this contract entitled "Indian Preference," the Contractor agrees to establish and conduct an Indian preference program which will expand opportunities for Indians to receive preference for employment and training in connection with the work performed under this contract, and which will expand the opportunities for Indian organizations and Indian-owned economic enterprises to receive a preference in the awarding of subcontracts. In this connection, the Contractor shall perform the following:

(1) Designate a liaison officer who will maintain liaison with the Government and the Tribe(s) on Indian preference matters; supervise compliance with the provisions of this clause; and administer the Contractor's Indian preference program.

(2) Advise its recruitment sources in writing and include a statement in all employment advertisements that Indian applicants receive preference in employment and training incident to such employment.

(3) Not more than 20 calendar days after award of the contract, post a written notice setting forth the Contractor's employment needs and related training opportunities in the tribal office of any reservations on or near the contract work location. The notice shall include the approximate numbers and types of employees needed; the approximate dates of employment;

any experience or special skills required for employment; training opportunities available; and other pertinent information necessary to advise prospective employees of any other employment requirements. The Contractor shall also request the tribe(s) on or near whose reservation(s) the Contractor will perform contract work to provide assistance filling its employment needs and training opportunities. The Contracting Officer will advise the Contractor of the name, location, and phone number of the Tribal officials to contact regarding the posting of notices and requests for Tribal assistance.

(4) Establish and conduct a subcontracting program which gives preference to Indian organizations and Indian-owned economic enterprises as subcontractors (including suppliers) under this contract. The Contractor shall give public notice of existing subcontracting opportunities and, to the extent feasible and consistent with the efficient performance of this contract, shall solicit bids or proposals from Indian organizations or Indian-owned economic enterprises only. The Contractor shall request assistance and information on Indian firms qualified as subcontractors (including suppliers) from the Tribe(s) on or near whose reservation(s) the Contractor will perform contract work. The Contracting Officer will advise the Contractor of the name, location, and phone number of the Tribal officials to contact regarding the request for assistance and information. Public notices and solicitations for existing subcontracting opportunities shall provide an equitable opportunity for Indian firms to submit bids or proposals by including -

(i) A clear description of the supplies or services required, including quantities, specifications, and delivery schedules that facilitate the participation of Indian firms;

(ii) A statement indicating that Indian organizations and Indian-owned economic enterprises will receive preference in accordance with section 7(b) of Public Law 93-638; 88 Stat. 2205; 25 U.S.C. 450e(b);

(iii) Definitions for the terms "Indian organization" and "Indian-owned economic enterprise" prescribed under the "Indian Preference" clause of this contract;

(iv) A statement that the bidder or offeror shall complete certifying that it is an Indian organization or Indian-owned economic enterprise; and

(v) A closing date for receipt of bids or proposals which provides sufficient time for preparation and submission of a bid or proposal. If, after soliciting bids or proposals from Indian organizations and Indian-owned economic enterprises, the Contractor receives no responsive bid or acceptable proposal, the Contractor shall comply with the requirements of paragraph (d) of the "Indian Preference" clause of this contract. If the Contractor receives one or more responsive bids or conforming proposals, the Contractor shall award the contract to the low, responsive, responsible bidder or conforming offer from a responsible offeror if the price is reasonable. If the Contractor determines the low responsive bid or conforming proposal's price is unreasonable, the Contractor shall attempt to negotiate a reasonable price and award a

subcontract. If parties cannot agree on a reasonable price, the Contractor shall comply with the requirements of paragraph (d) of the "Indian Preference" clause of this contract.

(5) Maintain written records under this contract which demonstrate -

(i) The numbers of Indians seeking employment for each employment position available under this contract;

(ii) The number and types of positions filled by Indians and non-Indians;

(iii) The total number of Indians employed under this contract;

(iv) For those positions having both Indian and non-Indian applicants, and a non-Indian is selected for employment, the reason(s) why the Contractor did not select the Indian applicant;

(v) Actions taken to give preference to Indian organizations and Indian-owned economic enterprises for subcontracting opportunities which exist under this contract;

(vi) Reasons why Indian subcontractors and or suppliers did not receive preference for each requirement where the Contractor determined that such preference was inconsistent with efficient contract performance; and

(vii) The number of Indian organizations and Indian-owned economic enterprises contacted, and the number receiving subcontract awards under this contract.

(6) Submit to the Contracting Officer for approval a quarterly report summarizing the Contractor's Indian preference program and indicating the number and types of available positions filled by Indians and non-Indians, and the dollar amounts of all subcontracts awarded to Indian organizations and Indian-owned economic enterprises, and to all other firms.

(7) Maintain records pursuant to this clause and keep them available for review by the Government for one year after final payment under this contract, or for such longer period in accordance with requirements of any other clause of this contract or by applicable law or regulation.

(b) For purposes of this clause, the following definitions of terms shall apply:

(1) The terms *Indian*, *Indian tribe*, *Indian organization*, and *Indian-owned economic enterprise* are defined in the clause of this contract entitled *Indian Preference*.

(2) *Indian reservation* includes Indian reservations, public domain Indian allotments, former Indian reservations in Oklahoma, and land held by incorporated Native groups, regional corporations, and village corporations under the provisions of the Alaska Native Claims Settlement Act (85 Stat. 688; 43 U.S.C. 1601 *et seq.*)

(3) *On or near an Indian reservation* means on a reservation or reservations or within that area surrounding an Indian reservation(s) where a person seeking employment could reasonably expect to commute to and from in the course of a work day.

(c) Nothing in the requirements of this clause shall preclude Indian tribes from independently developing and enforcing their own Indian preference requirements. Such requirements must not conflict with any Federal statutory or regulatory requirement dealing with the award and administration of contracts.

(d) The Contractor agrees to include the provisions of this clause, including this paragraph (d), in each subcontract awarded at any tier under this contract and to notify the Contracting Officer of such subcontracts.

(e) In the event of noncompliance with this clause, the Contracting Officer may terminate the contract in whole or in part or may pursue any other remedies authorized by law or by other provisions of the contract.

(End of clause)

352.237-70 Pro-Children Act.

As prescribed in HHSAR 337.103(d)(1), the Contracting Officer shall insert the following clause:

Pro-Children Act (DEC 2015)

(a) Public Law 103-227, Title X, Part C, also known as the *Pro-Children Act of 1994* (Act), 20 U.S.C. 7183, imposes restrictions on smoking in facilities where certain federally funded children's services are provided. The Act prohibits smoking within any indoor facility (or portion thereof), whether owned, leased, or contracted for, that is used for the routine or regular provision of: (i) Kindergarten, elementary, or secondary education or library services or (ii) health or day care services that are provided to children under the age of 18. The statutory prohibition also applies to indoor facilities that are constructed, operated, or maintained with Federal funds.

(b) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all subcontracts awarded under this contract for the specified children's services. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act. Failure to comply with the Act may result in the imposition of a civil monetary penalty in an amount not to exceed \$1,000 for each violation and/or the imposition of an administrative compliance order on the responsible entity. Each day a violation continues constitutes a separate violation.

352.237-71 Crime Control Act - Reporting of Child Abuse.

As prescribed in HHSAR 337.103(d)(2), the Contracting Officer shall insert the following clause:

Crime Control Act of 1990 - Reporting of Child Abuse (DEC 2015)

(a) Public Law 101-647, also known as the Crime Control Act of 1990 (Act), imposes responsibilities on certain individuals who, while engaged in a professional capacity or activity, as defined in the Act, on Federal land or in a federally-operated (or contracted) facility, learn of facts that give the individual reason to suspect that a child has suffered an incident of child abuse.

(b) The Act designates “covered professionals” as those persons engaged in professions and activities in eight different categories including, but not limited to, teachers, social workers, physicians, dentists, medical residents or interns, hospital personnel and administrators, nurses, health care practitioners, chiropractors, osteopaths, pharmacists, optometrists, podiatrists, emergency medical technicians, ambulance drivers, alcohol or drug treatment personnel, psychologists, psychiatrists, mental health professionals, child care workers and administrators, and commercial film and photo processors. The Act defines the term “child abuse” as the physical or mental injury, sexual abuse or exploitation, or negligent treatment of a child.

(c) Accordingly, any person engaged in a covered profession or activity under an HHS contract or subcontract, regardless of the purpose of the contract or subcontract, shall immediately report a suspected child abuse incident in accordance with the provisions of the Act. If a child is suspected of being harmed, the appropriate State Child Abuse Hotline, local child protective services (CPS), or law enforcement agency shall be contacted. For more information about where and how to file a report, the Childhelp USA, National Child Abuse Hotline (1-800-4-A-CHILD) shall be called. Any covered professional failing to make a timely report of such incident shall be guilty of a Class B misdemeanor.

(d) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all applicable subcontracts awarded under this contract. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act.

(End of clause)

352.237-72 Crime Control Act - Requirement for Background Checks.

As prescribed in HHSAR 337.103(d)(3), the Contracting Officer shall insert the following clause:

Crime Control Act of 1990 - Requirement for Background Checks (DEC 2015)

(a) Public Law 101-647, also known as the Crime Control Act of 1990 (Act), requires that all individuals involved with the provision of child care services to children under the age of 18 undergo a criminal background check. “Child care services” include, but are not limited to, social services, health and mental health care, child (day) care, education (whether or not

directly involved in teaching), and rehabilitative programs. Any conviction for a sex crime, an offense involving a child victim, or a drug felony, may be grounds for denying employment or for dismissal of an employee providing any of the services listed above.

(b) The Contracting Officer will provide the necessary information to the Contractor regarding the process for obtaining the background check. The Contractor may hire a staff person provisionally prior to the completion of a background check, if at all times prior to the receipt of the background check during which children are in the care of the newly-hired person, the person is within the sight and under the supervision of a previously investigated staff person.

(c) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all applicable subcontracts awarded under this contract. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act.

(End of clause)

352.237-73 Indian Child Protection and Family Violence Act.

As prescribed in HHSAR 337.103(d)(4) the Contracting Officer shall insert the following clause:

Indian Child Protection and Family Violence Act (DEC 2015)

(a) This contract is subject to the Indian Child Protection and Family Violence Act, Public Law 101-630 (25 U.S.C. 3201 *et seq.*) The duties and responsibilities required by this contract may involve regular contact with or control over Indian children. Public Law 101-630 prohibits employment, including Personal Service Contracts, with anyone who has been convicted of any crime of violence. Any such conviction should immediately be brought to the attention of the Contracting Officer. The contractor will be subject to a character investigation, conducted by the Indian Health Service, Office of Human Resources. Until such time as the contractor has been notified of completion of the investigation, the contractor shall have no unsupervised contact with Indian children. In order to initiate this background investigation, the contractor must provide information as required in this contract or as directed by the Contracting Officer.

(b) As a prerequisite to providing services under this contract, the Contractor is required to complete and sign the declaration found in Section J of this contract.

(End of clause)

352.237-74 Non-Discrimination in Service Delivery.

As prescribed in HHSAR 337.103(e), the Contracting Officer shall insert the following clause in solicitations and contracts:

Non-Discrimination In Service Delivery (DEC 2015)

It is the policy of the Department of Health and Human Services that no person otherwise eligible will be excluded from participation in, denied the benefits of, or subjected to discrimination in the administration of HHS programs and services based on non-merit factors such as race, color, national origin, religion, sex, gender identity, sexual orientation, or disability (physical or mental). By acceptance of this contract, the contractor agrees to comply with this policy in supporting the program and in performing the services called for under this contract. The contractor shall include this clause in all sub-contracts awarded under this contract for supporting or performing the specified program and services. Accordingly, the contractor shall ensure that each of its employees, and any sub-contractor staff, is made aware of, understands, and complies with this policy.

(End of clause)

352.232-71 Electronic submission of payment requests

As prescribed in HHSAR 332.7003, use the following clause:

Electronic Submission of Payment Requests

(a) *Definitions.* As used in this clause -

Payment request means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), "Content of Invoices" and the applicable Payment clause included in this contract.

(b) Except as provided in paragraph (c) of this clause, the Contractor shall submit payment requests electronically using the Department of Treasury Invoice Processing Platform (IPP) or successor system. Information regarding IPP, including IPP Customer Support contact information, is available at www.ipp.gov or any successor site.

(c) The Contractor may submit payment requests using other than IPP only when the Contracting Officer authorizes alternate procedures in writing in accordance with HHS procedures.

(d) If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request.

(End of Clause)